

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PERSONAL INJURY PROTECTION COVERAGE IDAHO

This endorsement modifies insurance provided under the

following: BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM

Personal Injury Protection Benefits Schedule		
Benefit	Limit of Liability	
Medical and Hospital Benefits	\$15,000	
Income Continuation Benefits	\$12,000	Total Maximum
	\$250	Weekly Maximum
Loss of Services Benefits	\$20	Per Day

We agree with you, subject to all of the provisions of this endorsement and to all of the provisions of the policy except as modified herein, as follows:

A. COVERAGE:

We will pay Personal Injury Protection to an "insured" who sustains "bodily injury" in an "accident" arising out of the ownership, maintenance or use of an "auto" as an "auto." Subject to the limits shown in the Schedule, these Personal Injury Protection benefits consist of the following:

1. "Medical and hospital benefits" for any "insured."
"Medical and hospital benefits" means amounts for reasonable and necessary medical and hospital expenses and reasonable professional funeral services expenses incurred as a result of "bodily injury" sustained in an "auto" accident. Expenses must be incurred within three (3) years from the date of the accident.
2. "Income continuation benefits" for any "insured."
"Income continuation benefits" means payment for "loss" of up to eighty-five percent (85%) of gross income from work because of "bodily injury" sustained in an "auto" "accident." This benefit begins fourteen days after the "accident" and continues until the earliest for the following:

- a. When the "insured" is able to return to work; or,
 - a. When fifty-two weeks have passed since the fourteenth (14th) day after the accident; or,
 - b. The day the "insured" dies.
- "Loss of services benefits" for you.
- "Loss of services benefits" means amounts for reasonable expenses incurred during a period of disability for essential services you would have performed. This benefit continues until the earliest of the following:
- a. When you are reasonably able to perform such services; or,
 - b. When fifty-two weeks have passed since the date of the "accident"; or,
 - c. The day you die.

B. WHO IS INSURED:

1. You, if you are an individual, the terms you and your, as used in this Coverage Endorsement, include your spouse if resident in the same household.
2. If you are an individual, any "family member."
3. Any other person while "occupying" a covered "auto" with your consent.
4. A "pedestrian" if the "accident" involves a covered "auto."

C. EXCLUSIONS:

We will not pay Personal Injury Protection benefits:

1. Arising from "bodily injury" sustained by any **D.** person:
 - a. Caused by his or her own intentional act; or,
 - b. While participating in or practicing for any pre-arranged or organized racing, speed or stunt driving contest or exhibition.
 - c. While "occupying" an "auto" without a reasonable belief that the person is entitled to do so.
2. Arising from "bodily injury" caused by the radioactive, toxic, explosive or other hazardous properties of nuclear material including discharge of any nuclear weapon, whether or not accidental.
3. Arising from "bodily injury" sustained while your covered "auto" is being used to carry persons or property for compensation of any kind. This exclusion does not apply to a share-the-expense car pool.
4. Arising from "bodily injury" sustained by any person while "occupying":
 - a. A motorcycle; or,
 - b. Any other self-propelled vehicle with less than four wheels; or,
 - c. Any all-terrain vehicle designed primarily for off-road use; or,
 - d. Any "auto," other than your covered "auto," which is owned by you or furnished or available for your regular use.
 - e. Your trailer or motorhome while it is rented or leased to any organization, or any person other than you or a "family member."
5. Arising from "bodily injury" sustained by any "family member" while "occupying" an "auto," other than a "covered auto," which is owned by or furnished to or available for the regular use of that "family member."
6. For "income continuation benefits" for any person except you or a "family member" who sustains "bodily injury" as a "pedestrian" in an "accident" outside the State of Idaho.
7. Arising from "bodily injury" caused by war, whether or not declared, civil war,

insurrection, rebellion or revolution or any consequence of any of these.

LIMITS OF LIABILITY:

Regardless of the number of "insured's," policies or bonds applicable, claims made, premiums paid or covered "autos" to which this coverage applies, the most we will pay for personal injury protection benefits for "bodily injury" sustained by any "insured" in any one "auto" "accident" is limited as follows:

1. The total amount payable by us to or on behalf of each "insured" because of "bodily injury" sustained by such an "insured" in any one "accident" shall not be more than:
 - a. The Limit of Liability shown in the Schedule for "medical and hospital benefits," subject to a maximum of three thousand dollars (\$3,000.00) for funeral services.
 - b. The Limit of Liability shown in the Schedule for "income continuation benefits," subject to the following:
The combined weekly payment received by an "insured" under any other disability or loss of income benefit and this coverage paid will not exceed 85% of the "insured's" gross weekly income. An "insured's" sick leave benefit or vacation pay will not be considered by us in determining eligibility for "income continuation benefits." The Limit of Liability per day shown in the Schedule for "loss of services benefits."
2. Any amount payable by us under the terms of this coverage to or on behalf of an "insured" will be reduced by the amount paid or payable to or on behalf of that "insured" under any workers' compensation or any other similar medical or disability benefits law.
3. Any payment made under this coverage to an "insured" will be applied toward any settlement or award that "insured" receives under any Liability or Underinsured Motorists Coverage provided by this policy. However, if the Liability or Underinsured Motorists Coverage limits are exhausted, insurance provided by this coverage may be applied as excess insurance.

E. CONDITIONS

1. The following is added to the OTHER INSURANCE condition:

If there is other applicable auto Medical Payments or Personal Injury Protection coverage we will pay only our share. Our share is the proportion that our limit of liability bears to the total of all applicable limits. However, any insurance we provide with respect to an "auto" you do not own shall be excess over any other collectible auto insurance providing payments for medical, funeral or Personal Injury Protection.

2. The following is added to the DUTIES IN THE EVENT OF ACCIDENT, CLAIM, SUIT OR LOSS condition:

If "income continuation benefits" are claimed, the "insured" shall upon request authorize us to obtain details of wage or salary payments during the year immediately preceding the date of loss and other information as to the loss of income. No "income continuation benefits" will be paid until such information has been provided to us.

3. The following ARBITRATION condition is added:

If we and an "insured" disagree as to the amount payable under this coverage, the dispute shall be resolved by arbitration. Arbitration shall begin upon a written demand from either party.

- a. The parties may agree to a single arbitrator. A decision by the arbitrator will be binding.

- b. If the parties cannot agree on a single arbitrator, each may select an independent representative, who will then select a single arbitrator. The parties may then proceed with the single arbitrator by agreement. A decision by the arbitrator will be binding.
- c. If the representatives cannot agree on a single arbitrator within thirty (30) days or the parties do not agree on the arbitrator selected, each party will select an arbitrator. The two (2) arbitrators will select a third. If they cannot agree within thirty (30) days, either may request that selection be made by a court having jurisdiction. A decision by (2) of the three (3) arbitrators will be binding.
- d. Unless both parties agree otherwise, arbitration will take place within the county and state in which the "insured" lives. Local rules of law as to procedure and evidence will apply. Each party will pay the expenses it incurs including their own arbitrator and share equally the expenses of the third arbitrator.

F. ADDITIONAL DEFINITIONS:

"Family member" means a person related to you by blood, marriage or adoption who is a resident of your household. This includes a ward or foster child.

"Occupying" means in or upon or entering into or alighting from.

"Pedestrian" means a person who is not "occupying" an "auto" at the time injury occurs.